



SPONSOR: Sen. Richardson
Rep. D. Short

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 209

AN ACT TO AMEND THE CHARTER OF THE CITY OF SEAFORD RELATING TO POLICE.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members elected to each house thereof concurring therein):

Section 1. Amend the Charter of the City of Seaford by making deletions as shown by strike through and insertions as shown by underline as follows:

Chief of Police and Duties Of Police.

Section 18.

(a) The Mayor shall appoint, with the advice and consent of the City Council, a Chief of Police to supervise and command the police force known as the City of Seaford Police Department. The Chief of Police reports directly to the City Manager and is subject to applicable laws, including state employment laws and the terms of any employment agreement.

(b) The Chief of Police is the head of the City of Seaford Police Department and shall oversee the organization, administration, and operation of the City of Seaford Police Department. The Chief of Police may do all of the following:

(1) Establish directives, rules, regulations, and policies necessary to effectively operate the City of Seaford Police Department.

(2) Appoint, assign, promote, suspend, or dismiss members of the City of Seaford Police Department, subject to applicable laws and the City of Seaford's personnel policies.

(c) The said police officers shall be members of the City of Seaford Police Department, under the Chief of Police's direction, have police powers and are conservators of the peace within the limits of said City and shall monthly, or as often as the Mayor shall deem desirable, submit a consolidated report setting forth at a minimum the number of arrests made during said preceding month. The police officers shall see that ordinances are enforced, and they together with such assistants or other policemen as may be appointed, shall have power to arrest any person or persons for the violations of said City of Seaford's corporate limits. As allowed by state and local law, the members of the City of Seaford Police Department have police powers outside of the City of Seaford's corporate limits. The members of the City of Seaford Police Department shall do all of the following:

(1) Enforce all applicable federal, state, and city local laws or ordinances wherein an arrest for violation is

provided; and in addition thereto, shall have all of the same powers and functions as established under Delaware Code
Titles 11 and 21.

Each member of the Police force shall be vested, within the city limits and within one mile outside of said limits,
with all the powers and authority as established under Delaware Code Titles 11 & 21 and in the case of hot pursuit of an
offender, their power and authority shall extend to any part of the State of Delaware.

It shall be the duty of the police to suppress riotous, disorderly or turbulent assemblages of persons in the streets of
the City, or the noisy conduct of any person in the same, and upon view of the above, or upon view of the violations of any
ordinance of the City relating to the peace and good order thereof, the Police shall have the right and power to arrest
without warrant and to take the offender before the Alderman or Justice of the Peace for hearing.

If any Police Officer shall neglect or refuse to perform any of the duties required of him by this Act, he shall be
deemed guilty of a misdemeanor, and the Mayor of said City may present him to the Grand Jury of Sussex County, and
upon conviction he shall be fined in a sum not less than Twenty-five nor more than five Hundred Dollars, and may be
imprisoned in the discretion of the Court for any term not exceeding one year, and upon such conviction he shall ipso facto
forfeit his office. and ordinances.

(2) Maintain public order.

(3) Protect life and property.

(4) Bring arrested individuals before the appropriate judicial authority.

SYNOPSIS

This Act amends the Charter of the City of Seaford relating to the City of Seaford Police Department (the
“Department”) by adding the existing Chief of Police position and by more clearly outlining the organization, oversight,
powers, and duties of the Department and its members.

The Mayor appoints a Chief of Police, with the advice and consent of the City Council. The Chief of Police reports
directly to the City Manager. The Chief of Police commands and supervises the Department and oversees the Department’s
organization, administration, and operation. The Chief of Police may do all of the following:

1. Establish directives, rules, regulations, and policies necessary to effectively operate the Department.
2. Appoint, assign, promote, suspend, or dismiss members of the Department.

The members of the Department have police powers and are conservators of the peace within the City of Seaford’s
corporate limits. As allowed by state and local law, the members of the Department have police powers outside of the City
of Seaford’s corporate limits. The members of the Department shall do all of the following:

1. Enforce all applicable federal, state, and local laws and ordinances.
2. Maintain public order.
3. Protect life and property.
4. Bring arrested individuals before the appropriate judicial authority.

This Act also removes the misdemeanor penalty, imposed under the Charter, for a member of the Department
neglecting or refusing to perform the member’s duties.

This Act requires a greater than majority vote for passage because § 1 of Article IX of the Delaware Constitution
requires the affirmative vote of two-thirds of the members elected to each house of the General Assembly to amend a
municipal charter.